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State reforms address workplace sexual harassment, but victimization still persists

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In the fall of 2017, allegations of sexual misconduct against Harvey Weinstein, Roger Ailes, Al Franken and many others roiled the social, cultural and political landscape. Almost two years later, we check on the progress of the #MeToo revolution, asking what steps should we take to ensure victims of workplace misconduct are heard and that there is accountability for those who engage in such unacceptable behavior?

"Workplace sexual harassment takes a significant negative toll on employees, culture and the bottom line," said Debbie Mesloh, president of the San Francisco Commission on the Status of Women. "The #MeToo movement has opened a national conversation and increased awareness about the prevalence of workplace sexual harassment, the necessity to confront it and what companies and organizations can do to try and prevent it."

Several California Influencers praised policy reforms designed to crack down on workplace misconduct, but also warned how much work remained.

"While so much remains to be done in this area, it seems we are turning a corner," said former California Women Lead President Cassandra Walker-Pye, who cited new laws requiring workplace training, strengthened legal standards and a prohibition on non-disclosure agreements for sexual harassment and assault. "The good news is most of these policies have been advanced in a bipartisan manner by legislatures all around the country. As they should be."

Assemblywoman Monique Limon, D-Goleta, called for further legislation to advance victim protections and facilitate the reporting of sexual misconduct.

"More often than not, victims of workplace misconduct stay silent, fearing inaction or retaliation," Limon said. "In an effort to support victims, we must promote a culture of trust and develop a transparent system of response that demonstrates to victims they do not need to be afraid to step forward."

Limon's colleague Jesse Gabriel, D-Los Angeles, emphasized the importance of improving the investigatory process once misconduct has been reported.

"We should mandate training for human resources professionals to help them conduct more efficient and effective investigations into workplace misconduct," Gabriel said. "Improving the investigatory process will... give employees greater confidence that... individuals responsible for misconduct will be held accountable."

Caitlin Vega, legislative director for the California Labor Federation, emphasized the obstacles that workers face when reporting misconduct.

"Workers who do come forward risk a reduction in hours, a move to the night shift, or an even more hostile work environment," said Vega, who stressed the role of labor unions in protecting against workplace abuse. "A worker alone is unlikely to challenge the boss and if she does, she will probably face retaliation. But workers standing

together can demand fair treatment, look out for one another on the job, and take collective action to demand change."

Business community leaders agreed to the need to protect employees from sexual misconduct. Donna Lucas, the president of Lucas Public Affairs in Sacramento, praised the state's required sexual harassment prevention training.

"As a small business owner, I'm leery of any state mandated training, but the two-hour session was very helpful," Lucas said. "Done right, it provides a healthy forum for employers to understand that every workplace needs harassment standards and a system that allows employees to safely voice concerns over workplace issues."

California Chamber of Commerce Executive Vice President Jennifer Barrera underscored the need for employers to be vigilant and responsive to any such potential threats.

"All employees deserve the right to go to work without fear of harassment," Barrera said. "The (#MeToo) movement highlighted the need for executives, managers, and supervisors to change the culture in the workplace, starting from the top down, to ensure it is well understood there is no tolerance for misconduct."

But Maria Mejia, Los Angeles director for Gen Next, argued that eliminating broader gender inequities would be necessary to make the workplace safe for women.

"With an economy so drastically skewed in favor of the benefit of men, it should be of no surprise, that we continue to see workplace environments where the victimization of women is common," Mejia said. "Women deserve to be safe at work and the true road to victory starts with empowering their economic presence with better jobs, competitive pay, paid parental leave policies, and elevating more and more of them to visible leadership positions across a spectrum of industries."

David Townsend, managing partner of Sacramento's TCT Public Affairs, outlined an even bigger challenge.

"Workplace misconduct is a manifestation of the objectification of women in our culture," Townsend said. "We have to have tough legal protections and support systems that possess more power than the perpetrators hold to force appropriate behavior. But, like racism, we have to challenge the core aspects of our culture that condone this objectification."

Dan Schnur, a veteran analyst and longtime participant in California politics, is director of the California Influencers series for McClatchy.

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